

THOMAS, J., concurring

answer these essential questions concerning the Special Counsel's appointment before proceeding.

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The Constitution sets forth how an office may be created and how it may be filled. The Appointments Clause provides:

“[The President] shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the supreme Court, and all other Officers of the United States, whose Appointments are not herein otherwise provided for, and which shall be established by Law: but the Congress may by Law vest the Appointment of such inferior Officers, as they think proper, in the President alone, in the Courts of Law, or in the Heads of Departments.” Art. II, §2, cl. 2.

The constitutional process for filling an office is plain from this text. The default manner for appointing “Officers of the United States” is nomination by the President and confirmation by the Senate. *Ibid.* “But the Clause provides a limited exception for the appointment of inferior officers: Congress may ‘by Law’ authorize” one of three specified actors “to appoint inferior officers without the advice and consent of the Senate.” *NLRB v. SW General, Inc.*, 580 U. S. 288, 312 (2017) (THOMAS, J., concurring). As relevant here, a “Hea[d] of Departmen[t]”—such as the Attorney General—is one such actor that Congress may authorize “by Law” to appoint inferior officers without senatorial confirmation. Art. II, §2, cl. 2.

Before the President or a Department Head can appoint any officer, however, the Constitution requires that the underlying office be “established by Law.”¹ The Constitution

¹ Although a Government official may also be a “nonofficer employe[e],” I set aside that category because it is difficult to see how an official exercising the Department of Justice’s duties to enforce the criminal law by lead-